



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

JUN 27 2001

DOT-E 12713
(FIRST REVISION)

EXPIRATION DATE: November 15, 2001

1. GRANTEE: Delta Air Lines, Inc.
Atlanta, Georgia
2. PURPOSE AND LIMITATION:
 - a. This emergency exemption authorizes the transportation in commerce of life-saving appliances that contain a compressed gas cylinder, manufactured under DOT-E 8162, that is filled in excess of its marked service pressure and does not meet the Hazardous Materials Regulations (HMR). This exemption provides no relief from any regulation other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.301(c) in that each package is not required to be marked with the exemption number; and 173.219(b)(1) in that life-saving appliances containing compressed gas cylinders that do not meet the Hazardous Materials Regulations are not authorized except as specified herein.

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5. BASIS: This emergency exemption is based on the application of Delta Air Lines, Inc. dated, May 29, 2001, submitted in accordance with § 107.117, a corrective action replacement plan dated, June 26, 2001, and a determination that it is necessary to prevent significant economic loss.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper shipping name -- Hazardous materials description	Hazard Class/ Division	Identi- fication Number	Packing Group
Life-saving appliances, self inflating	9	UN2990	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Prescribed packagings are self inflating life-saving appliances (aircraft emergency escape slide assemblies) that conform to § 173.219 except that the nonflammable compressed gas is packaged in cylinders that do not meet the requirements of the HMR. Each cylinder has been manufactured under DOT-E 8162 having a marked service pressure of 3000 psig except that each cylinder has been charged up to 10 percent in excess of its marked service pressure.

b. OPERATIONAL CONTROLS - Transportation of the life-saving appliances specified in this exemption are authorized for 15 one-way shipments by motor vehicle from Delta Air Lines in Atlanta, Georgia to their service facility in Dallas/Ft.Worth, Texas.

8. SPECIAL PROVISIONS:

a. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

b. After November 15, 2001, each DOT-E 8162 exemption cylinder specified in paragraph 7.a. above is not authorized for transportation and the exemption number and associated required markings (DOT-E 8162-3000) must be removed or covered.

c. MARKING - The marking requirement of § 172.301(c) is waived.

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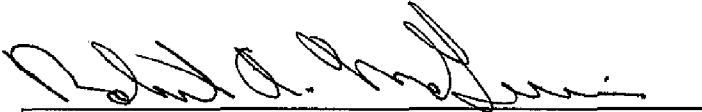
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle
10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, 400 Seventh Street, SW, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.